



File No: EXP202307393

## RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

Of the procedure initiated by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: On June 16, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the COMMUNITY OF OWNERS \*\*\*COMMUNITY.1 (hereinafter, the claimed party), through the Agreement that is transcribed:

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### AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection, and based on the following

### FACTS

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection against the COMMUNITY OF OWNERS \*\*\*COMMUNITY.1 with NIF \*\*\*NIF.1 (hereinafter, the claimed party), indications of a possible breach of the provisions of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) were noted, and actions were initiated under file number EXP202206141.

In accordance with the provisions of Article 65 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD hereinafter), the complaint was forwarded to the responsible party or to the Data Protection Officer that may have been designated, requesting that they send to this Agency the information and documentation indicated. This request for information was not answered within the deadline. The complaint was admitted for processing on August 24, 2022.

SECOND: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities in Article 57.1 of the GDPR, and in accordance with the provisions established in Title VII, Chapter I, Section two, of the aforementioned LOPDGDD.

In the framework of the investigative actions, two requests for information were sent to the claimed party, related to the complaint mentioned in the first section, for them to present before this Agency the information and documentation indicated within ten working days. The first of these was registered for dispatch on November 25, 2022, while the second was registered on January 30, 2023.

THIRD: The requests for information, which were notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), were received by the claimed party, as evidenced by the acknowledgments of receipt in the file.

FOURTH: Regarding the requested information, the claimed party has not submitted any response to this Spanish Agency for Data Protection.

### LEGAL GROUNDS

I

#### Competence

In accordance with the powers that Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) grants to each control authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

## II

### Obligation Breached

In accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the claimed party has not provided the information requested by the Spanish Agency for Data Protection.

With the aforementioned conduct of the claimed party, the investigative power that Article 58.1 of the GDPR confers on control authorities, in this case, the AEPD, has been obstructed.

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Therefore, the facts described in the "Facts" section are considered to constitute an infringement, attributable to the respondent party, for violation of Article 58.1 of the GDPR, which provides that each supervisory authority shall have, among its investigative powers:

“a) to order the controller and the processor and, where applicable, the representative of the controller or the processor, to provide any information required for the performance of their functions; b) to carry out investigations in the form of data protection audits; c) to carry out a review of the certifications issued under Article 42, paragraph 7; d) to notify the controller or the processor of the alleged infringements of this Regulation; e) to obtain from the controller and the processor access to all personal data and all information necessary for the exercise of their functions; f) to obtain access to all premises of the controller and the processor, including any equipment and means of processing data, in accordance with the procedural law of the Union or of the Member States.”

## III

### Classification and Qualification of the Infringement

In accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what may result from the instruction, it is considered that the facts presented could constitute an infringement, attributable to the respondent party.

This infringement is classified under Article 83.5.e) of the GDPR, which considers as such: “not providing access in violation of Article 58, paragraph 1.”

The same article establishes that this infringement may be sanctioned with a fine of up to twenty million euros (€20,000,000) or, in the case of a company, an amount equivalent to four percent (4%) of the total annual global turnover of the previous financial year, opting for the higher amount.

For the purposes of the statute of limitations for infringements, the alleged infringement is subject to a three-year limitation period, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

“ñ) Not providing access for the personnel of the competent data protection authority to the personal data, information, premises, equipment, and means of processing that are required by the data protection authority for the exercise of its investigative powers.

o) The resistance or obstruction of the exercise of the inspection function by the competent data protection authority.”

## IV

### Proposal for Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR.

In light of the facts presented, without prejudice to what may result from the instruction of the procedure, the sanction that would correspond to be imposed is an administrative fine of €500.00, for the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of that regulation.

In the initial assessment, it is noted that no mitigating or aggravating factors apply.

Therefore, in light of the above,

By the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against the COMMUNITY OF OWNERS RÍO CANARIO, with NIF \*\*\*NIF.1, for the infringement of Article 58.1 of the GDPR, classified under Article 83.5 e) of the aforementioned GDPR.

SECOND: TO ORDER the COMMUNITY OF OWNERS \*\*\*COMMUNITY.1 to, in accordance with the investigative power provided in Article 58.1.a) of the GDPR, provide, within ten working days, the information requested in the requests made in the framework of the proceedings with file number EXP202206141 and to which reference has been made in the description of the facts of this initiation agreement.

THIRD: TO APPOINT A.A.A. as the instructor and B.B.B. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

FOURTH: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the information requests issued by the General Sub-Directorate of Data Inspection in the framework of the proceedings with file number EXP202206141 and the proof of notification thereof.

FIFTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, for the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of that regulation, an administrative fine of €500.00, without prejudice to what may result from the instruction.

SIXTH: TO NOTIFY this agreement to the COMMUNITY OF OWNERS RÍO CANARIO, with NIF \*\*\*NIF.1, granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number indicated in the heading of this document.

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If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Once this period has elapsed, it will lapse, and consequently, the proceedings will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

In accordance with the provisions of Article 85 of the LPACAP, you may acknowledge your responsibility within the period granted for making allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 400.00 euros, resolving the procedure with the imposition of this sanction.

Likewise, you may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will result in a 20% reduction of its amount. With the application of this reduction, the sanction would be set at 400.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment is made within the period granted to formulate allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 300.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or appeal in the administrative pathway against the sanction.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (400.00 euros or 300.00 euros), you must make it effective by depositing it into account no. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code XXXXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the

concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are entitled.

You must also send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

In compliance with Articles 14, 41, and 43 of the LPACAP, you are hereby informed that, henceforth, notifications sent to you will be made exclusively electronically, through the Unique Enabled Electronic Address ([dehu.redsara.es](mailto:dehu.redsara.es)), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the proceedings. You are informed that you can identify an email address to this Agency to receive notice of the availability of notifications, and that the lack of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On July 4, 2023, the respondent has proceeded to pay the sanction in the amount of 300 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to formulate allegations regarding the opening of the procedure, entails the waiver of any action or appeal in the administrative pathway against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

#### LEGAL GROUNDS

I

##### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

##### Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures," provides as follows:

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"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the latter has been justified as inappropriate, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve

the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of the procedure EXP202307393, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER the COMMUNITY OF PROPERTY OWNERS \*\*\*COMMUNITY.1 to, in accordance with the investigative power provided in Article 58.1.a) of the GDPR, provide within ten working days the information required in the requests made in the framework of the proceedings with file number EXP202206141 and to which reference has been made in the background of this resolution.

THIRD: TO NOTIFY this resolution to the COMMUNITY OF PROPERTY OWNERS

\*\*\*COMMUNITY.1.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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